



Employment Act 1989

1989 CHAPTER 38

An Act to amend the Sex Discrimination Act 1975 in pursuance of the Directive of the Council of the European Communities, dated 9th February 1976, (No.76/207/EEC) on the implementation of the principle of equal treatment for men and women as regards access to employment, vocational training and promotion, and working conditions; to repeal or amend prohibitions or requirements relating to the employment of young persons and other categories of employees; to make other amendments of the law relating to employment and training; to repeal section 1(1)(a) of the Celluloid and Cinematograph Film Act 1922; to dissolve the Training Commission; to make further provision with respect to industrial training boards; to make provision with respect to the transfer of staff employed in the Skills Training Agency; and for connected purposes.

[16th November 1989]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Overriding of provisions requiring discrimination as respects employment or training

1.—(1) Any provision of—

- (a) an Act passed before the Sex Discrimination Act 1975, or
- (b) an instrument approved or made by or under such an Act (including one approved or made after the passing of the 1975 Act),

shall be of no effect in so far as it imposes a requirement to do an act which would be rendered unlawful by any of the provisions of that Act referred to in subsection (2).

Overriding of statutory requirements which conflict with certain provisions of 1975 Act.
1975 c. 65.

(2) Those provisions are—

- (a) Part II (discrimination as respects employment);
- (b) Part III (discrimination as respects education etc.) so far as it applies to vocational training; and
- (c) Part IV (other unlawful acts) so far as it has effect in relation to the provisions mentioned in paragraphs (a) and (b) above.

(3) Where in any legal proceedings (of whatever nature) there falls to be determined the question whether subsection (1) operates to negative the effect of any provision in so far as it requires the application by any person of a requirement or condition falling within subsection (1)(b)(i) of section 1 or 3 of the 1975 Act (indirect discrimination on grounds of sex or marital status)—

- (a) it shall be for any party to the proceedings who claims that subsection (1) does not so operate in relation to that provision to show the requirement or condition in question to be justifiable as mentioned in subsection (1)(b)(ii) of that section; and
- (b) the said subsection (1)(b)(ii) shall accordingly have effect in relation to the requirement or condition as if the reference to the person applying it were a reference to any such party to the proceedings.

(4) Where an Act passed after the 1975 Act, whether before or after the passing of this Act, re-enacts (with or without modification) a provision of an Act passed before the 1975 Act, that provision as re-enacted shall be treated for the purposes of subsection (1) as if it continued to be contained in an Act passed before the 1975 Act.

Power of
Secretary of
State to repeal
statutory
provisions
requiring
discrimination as
respects
employment or
training.

2.—(1) Where it appears to the Secretary of State that a relevant provision, namely any provision of—

- (a) an Act passed before this Act, or
- (b) an instrument approved or made by or under such an Act (including one approved or made after the passing of this Act),

requires the doing of an act which would (within the meaning of the 1975 Act) constitute an act of discrimination in circumstances relevant for the purposes of any of the provisions of that Act falling within section 1(2) above, he may by order make such provision (whether by amending, repealing or revoking the relevant provision or otherwise) as he considers appropriate for removing any such requirement.

(2) Subsection (1) shall have effect in relation to a provision to which section 1(1) above applies as if the reference to a relevant provision requiring the doing of an act were a reference to its so requiring but for the operation of section 1(1).

(3) Any order under this section which makes any amendment, repeal or revocation of a relevant provision within the meaning of subsection (1) may (without prejudice to the generality of section 28(5) below) amend or repeal any provision of this Act by virtue of which acts done in pursuance of the relevant provision are not to be unlawful for the purposes of provisions of the 1975 Act.

(4) Where an Act passed after this Act re-enacts (with or without modification) a provision of an Act passed before this Act, that provision as re-enacted shall be treated for the purposes of subsection (1) as if it continued to be contained in an Act passed before this Act.

Circumstances where discrimination as respects employment or training is permissible

3.—(1) The 1975 Act shall be amended as follows.

(2) Section 7(2)(f) (exception for jobs held by men because of statutory restrictions on employment of women) shall be omitted.

(3) The following sections shall be substituted for section 51—

Restriction of exemption for discrimination required by or under statute.

“Acts done for purposes of protection of women.

51.—(1) Nothing in the following provisions, namely—

(a) Part II,

(b) Part III so far as it applies to vocational training, or

(c) Part IV so far as it has effect in relation to the provisions mentioned in paragraphs (a) and (b),

shall render unlawful any act done by a person in relation to a woman if—

(i) it was necessary for that person to do it in order to comply with a requirement of an existing statutory provision concerning the protection of women, or

(ii) it was necessary for that person to do it in order to comply with a requirement of a relevant statutory provision (within the meaning of Part I of the Health and Safety at Work etc. Act 1974) and it was done by that person for the purpose of the protection of the woman in question (or of any class of women that included that woman).

1974 c. 37.

(2) In subsection (1)—

(a) the reference in paragraph (i) of that subsection to an existing statutory provision concerning the protection of women is a reference to any such provision having effect for the purpose of protecting women as regards—

(i) pregnancy or maternity, or

(ii) other circumstances giving rise to risks specifically affecting women,

whether the provision relates only to such protection or to the protection of any other class of persons as well; and

(b) the reference in paragraph (ii) of that subsection to the protection of a particular woman or class of women is a reference to the protection of that woman or those women as regards any circumstances falling within paragraph (a)(i) or (ii) above.

(3) In this section "existing statutory provision" means (subject to subsection (4)) any provision of—

- (a) an Act passed before this Act, or
- (b) an instrument approved or made by or under such an Act (including one approved or made after the passing of this Act).

(4) Where an Act passed after this Act re-enacts (with or without modification) a provision of an Act passed before this Act, that provision as re-enacted shall be treated for the purposes of subsection (3) as if it continued to be contained in an Act passed before this Act.

Acts done under statutory authority to be exempt from certain provisions of Part III.

51A.—(1) Nothing in—

- (a) the relevant provisions of Part III, or
- (b) Part IV so far as it has effect in relation to those provisions,

shall render unlawful any act done by a person if it was necessary for that person to do it in order to comply with a requirement of an existing statutory provision within the meaning of section 51.

(2) In subsection (1) "the relevant provisions of Part III" means the provisions of that Part except so far as they apply to vocational training."

(4) The following section shall be inserted after section 52—

"Construction of references to vocational training.

52A. In the following provisions, namely—

- (a) sections 51 and 51A, and
- (b) the provisions of any Order in Council modifying the effect of section 52,

"vocational training" includes advanced vocational training and retraining; and any reference to vocational training in those provisions shall be construed as including a reference to vocational guidance."

Exemption for discrimination under certain provisions concerned with the protection of women at work.

4.—(1) Without prejudice to the operation of section 51 of the 1975 Act (as substituted by section 3(3) above), nothing in—

- (a) Part II of that Act,
- (b) Part III of that Act so far as it applies to vocational training, or
- (c) Part IV of that Act so far as it has effect in relation to the provisions mentioned in paragraphs (a) and (b) above,

shall render unlawful any act done by a person in relation to a woman if it was necessary for that person to do that act in order to comply with any requirement of any of the provisions specified in Schedule 1 to this Act (which are concerned with the protection of women at work).

(2) Each of the last two entries in that Schedule shall be construed as including a reference to any provision or provisions for the time being having effect in place of the provision or provisions specified in that entry.

(3) In this section "woman" means a female person of any age.

5.—(1) Nothing in Parts II to IV of the 1975 Act shall render unlawful any act done by a person in connection with the employment of another person as the head teacher or principal of any educational establishment if it was necessary for that person to do that act in order to comply with any requirement of any instrument relating to the establishment that its head teacher or principal should be a member of a particular religious order.

Exemption for discrimination in connection with certain educational appointments.

(2) Nothing in—

(a) Part II of the 1975 Act, or

(b) Part IV of that Act so far as it has effect in relation to Part II,

shall render unlawful any act done by a person in connection with the employment of another person as a professor in any university if the professorship in question is, in accordance with any Act or instrument relating to the university, either a canon professorship or one to which a canonry is annexed.

(3) Nothing in the provisions of the 1975 Act referred to in subsection (2)(a) or (b) shall render unlawful any act done by a person in connection with the employment of another person as the head, a fellow or any other member of the academic staff of any college, or institution in the nature of a college, in a university if it was necessary for that person to do that act in order to comply with any requirement of any instrument relating to the college or institution that the holder of the position in question should be a woman.

(4) Subsection (3) shall not apply in relation to instruments taking effect after the commencement of that subsection; and section 6(b) of the Interpretation Act 1978 (words importing the feminine gender to include the masculine) shall not apply to that subsection. 1978 c. 30.

(5) The Secretary of State may by order provide that any provision of subsections (1) to (3) shall not have effect in relation to—

(a) any educational establishment or university specified in the order; or

(b) any class or description of educational establishments so specified.

(6) In this section “educational establishment” means—

(a) any school within the meaning of the Education Act 1944 or the Education (Scotland) Act 1980; 1944 c. 31.
1980 c. 44.

(b) any college, or institution in the nature of a college, in a university; or

(c) any institution to which section 156 of the Education Reform Act 1988 applies (further and higher education institutions) or any constituent institution of an institution to which that section applies. 1988 c. 40.

(7) Nothing in this section shall be construed as prejudicing the operation of section 19 of the 1975 Act (exemption for discrimination in relation to employment of ministers of religion).

Power of Secretary of State to exempt particular acts of discrimination required by or under statute.

6.—(1) The Secretary of State may by order make such provision as he considers appropriate—

- (a) for disapplying subsection (1) of section 1 above in the case of any provision to which it appears to him that that subsection would otherwise apply;
- (b) for rendering lawful under any of the provisions of the 1975 Act falling within section 1(2) above acts done in order to comply with any requirement—
 - (i) of a provision whose effect is preserved by virtue of paragraph (a) above, or
 - (ii) of an instrument approved or made by or under an Act passed after the 1975 Act but before this Act (including one approved or made after the passing of this Act).

(2) Where an Act passed after this Act re-enacts (with or without modification) a provision of an Act passed as mentioned in sub-paragraph (ii) of subsection (1)(b), that provision as re-enacted shall be treated for the purposes of that sub-paragraph as if it continued to be contained in an Act passed as mentioned in that sub-paragraph.

Discrimination as respects training

Prohibition of discrimination in connection with provision of training.

7.—(1) The following section shall be substituted for section 14 of the 1975 Act—

“Persons concerned with provision of vocational training.

14.—(1) It is unlawful, in the case of a woman seeking or undergoing training which would help fit her for any employment, for any person who provides, or makes arrangements for the provision of, facilities for such training to discriminate against her—

- (a) in the terms on which that person affords her access to any training course or other facilities concerned with such training, or
- (b) by refusing or deliberately omitting to afford her such access, or
- (c) by terminating her training, or
- (d) by subjecting her to any detriment during the course of her training.

(2) Subsection (1) does not apply to—

- (a) discrimination which is rendered unlawful by section 6(1) or (2) or section 22 or 23, or
- (b) discrimination which would be rendered unlawful by any of those provisions but for the operation of any other provision of this Act.”

1976 c. 74.

(2) The following section shall be substituted for section 13 of the Race Relations Act 1976—

“Persons concerned with provision of vocational training.

13.—(1) It is unlawful, in the case of an individual seeking or undergoing training which would help fit him for any employment, for any person who provides, or makes arrangements for the provision of, facilities for such training to discriminate against him—

- (a) in the terms on which that person affords him access to any training course or other facilities concerned with such training; or
- (b) by refusing or deliberately omitting to afford him such access; or
- (c) by terminating his training; or
- (d) by subjecting him to any detriment during the course of his training.

(2) Subsection (1) does not apply to—

- (a) discrimination which is rendered unlawful by section 4(1) or (2) or section 17 or 18; or
- (b) discrimination which would be rendered unlawful by any of those provisions but for the operation of any other provision of this Act.”

(3) In section 37 of the Race Relations Act 1976 (discriminatory training by certain bodies)— 1976 c. 74.

- (a) in subsection (1), for “a training body” and “it appears to the training body” there shall be substituted “any person” and “it reasonably appears to that person” respectively;
- (b) in subsection (2), for “it appears to a training body” and “the training body” there shall be substituted “it reasonably appears to any person” and “that person” respectively; and
- (c) the following subsection shall be substituted for subsection (3)—
 “(3) The preceding provisions of this section shall not apply to any discrimination which is rendered unlawful by section 4(1) or (2).”

8.—(1) The Secretary of State may by order provide with respect to—

- (a) any specified arrangements made under section 2 of the Employment and Training Act 1973 (functions of the Secretary of State as respects employment and training), or
- (b) any specified class or description of training for employment provided otherwise than in pursuance of that section, or
- (c) any specified scheme set up under section 1 of the Employment Subsidies Act 1978 (schemes for financing employment),

Power to exempt discrimination in favour of lone parents in connection with training.
1973 c. 50.

1978 c. 6.

that this section shall apply to such special treatment afforded to or in respect of lone parents in connection with their participation in those arrangements, or in that training or scheme, as is specified or referred to in the order.

(2) Where this section applies to any treatment afforded to or in respect of lone parents, neither the treatment so afforded nor any act done in the implementation of any such treatment shall be regarded for the purposes of the 1975 Act as giving rise to any discrimination falling within section 3 of that Act (discrimination against married persons for purposes of Part II of that Act).

(3) An order under subsection (1) above may specify or refer to special treatment afforded as mentioned in that subsection—

- (a) whether it is afforded by the making of any payment or by the fixing of special conditions for participation in the arrangements, training or scheme in question, or otherwise, and
- (b) whether it is afforded by the Secretary of State or by some other person;

and, without prejudice to the generality of paragraph (b) of that subsection, any class or description of training for employment specified in such an order by virtue of that paragraph may be framed by reference to the person, or the class or description of persons, by whom the training is provided.

(4) In this section—

- (a) “employment” and “training” have the same meaning as in the 1973 c. 50. Employment and Training Act 1973; and
- (b) “lone parent” has the same meaning as it has for the purposes of any regulations made in pursuance of section 20(1)(a) of the 1986 c. 50. Social Security Act 1986 (income support).

Removal of restrictions and other requirements relating to employment

Repeal or
modification of
provisions
requiring
different
treatment of
different
categories of
employees.
1954 c. 70.

9.—(1) In sections 42(1), 43 and 44 of the Mines and Quarries Act 1954 (under which winding and rope haulage apparatus and conveyors are to be operated by or under the supervision of competent male persons who have attained the ages there specified), the word “male” shall be omitted wherever occurring.

(2) In section 93 of that Act (prohibition on heavy work by any woman or young person), the words “woman or young” shall be omitted in both places where they occur.

(3) Section 124(1) of that Act (prohibition on employment of woman in job requiring a significant proportion of the employee’s time to be spent underground) shall cease to have effect.

1961 c. 34.

(4) In section 20 of the Factories Act 1961 (prohibition on cleaning of machinery by any woman or young person), the words “woman or” shall be omitted in both places where they occur.

1963 c. 41.

(5) In section 17 of the Offices, Shops and Railway Premises Act 1963 (fencing of exposed parts of machinery)—

- (a) subsection (3),
- (b) in subsection (4), the words from “, except when any” onwards, and
- (c) subsection (5),

shall cease to have effect.

(6) In Schedule 2 to this Act—

- (a) the provisions of subordinate legislation listed in Part I (which require different treatment of different categories of employees) shall cease to have effect; and
- (b) the provisions of such legislation mentioned in Part II shall have effect subject to the amendments there specified (which assimilate the treatment of different categories of employees).

10.—(1) The following enactments, namely—

- (a) the enactments listed in Part I of Schedule 3 (which impose prohibitions or requirements with respect to the hours of employment and holidays of young persons and with respect to related matters), and
- (b) the enactments listed in Part II of that Schedule (which impose other prohibitions or requirements for, or in connection with, regulating the employment of young persons),

Removal of restrictions relating to employment of young persons.

shall cease to have effect.

(2) The enactments mentioned in Part III of Schedule 3 shall have effect subject to the amendments there specified (which include amendments by virtue of which certain occupations, instead of being restricted to persons who are 16 or older, are restricted to persons over school-leaving age).

(3) If the Secretary of State considers it appropriate to do so, he may by order—

- (a) repeal or amend any statutory provision in consequence of subsection (1) or (2);
- (b) repeal any statutory provision relating to the employment of persons, or any class of persons, who have not attained the age of 18 or (as the case may be) some specified lower age of not less than 16;
- (c) amend any statutory provision falling within paragraph (b) and framed by reference to a specified age expressed as a number of years so that it is instead framed by reference to school-leaving age;
- (d) repeal any statutory provision appearing to the Secretary of State to be unnecessary in view of any other such provision, being a provision relating to the employment of persons under school-leaving age.

(4) Nothing in any order under subsection (3) (apart from a repeal effected by virtue of paragraph (d) of that subsection) shall affect any statutory provision relating to the employment of persons under school-leaving age.

(5) Any reference in subsection (3)(d) or (4) to a statutory provision relating to the employment of persons under school-leaving age shall be construed, in relation to a statutory provision which relates to both—

- (a) the employment of such persons, and
- (b) the employment of persons over that age,

as a reference to so much of that provision as relates to the employment of persons under that age.

(6) In this section—

“school-leaving age” means—

- (a) in relation to England and Wales, the upper limit of compulsory school age for the purposes of the Education Act 1944; 1944 c. 31.
- (b) in relation to Scotland, the upper limit of school age for the purposes of the Education (Scotland) Act 1980; and 1980 c. 44.

S.I.1986/594
(N.I.3).

(c) in relation to Northern Ireland, the upper limit of compulsory school age for the purposes of the Education and Libraries (Northern Ireland) Order 1986; and

“statutory provision” means a provision of an Act or of subordinate legislation (and references to the repeal of a statutory provision shall be construed accordingly).

Exemption of
Sikhs from
requirements as
to wearing of
safety helmets
on construction
sites.

11.—(1) Any requirement to wear a safety helmet which (apart from this section) would, by virtue of any statutory provision or rule of law, be imposed on a Sikh who is on a construction site shall not apply to him at any time when he is wearing a turban.

(2) Accordingly, where—

(a) a Sikh who is on a construction site is for the time being wearing a turban, and

(b) (apart from this section) any associated requirement would, by virtue of any statutory provision or rule of law, be imposed—

(i) on the Sikh, or

(ii) on any other person,

in connection with the wearing by the Sikh of a safety helmet, that requirement shall not apply to the Sikh or (as the case may be) to that other person.

(3) In subsection (2) “associated requirement” means any requirement (other than one falling within subsection (1)) which is related to or connected with the wearing, provision or maintenance of safety helmets.

(4) It is hereby declared that, where a person does not comply with any requirement, being a requirement which for the time being does not apply to him by virtue of subsection (1) or (2)—

(a) he shall not be liable in tort to any person in respect of any injury, loss or damage caused by his failure to comply with that requirement; and

(b) in Scotland no action for reparation shall be brought against him by any person in respect of any such injury, loss or damage.

(5) If a Sikh who is on a construction site—

(a) does not comply with any requirement to wear a safety helmet, being a requirement which for the time being does not apply to him by virtue of subsection (1), and

(b) in consequence of any act or omission of some other person sustains any injury, loss or damage which is to any extent attributable to the fact that he is not wearing a safety helmet in compliance with the requirement,

that other person shall, if liable to the Sikh in tort (or, in Scotland, in an action for reparation), be so liable only to the extent that injury, loss or damage would have been sustained by the Sikh even if he had been wearing a safety helmet in compliance with the requirement.

(6) Where—

(a) the act or omission referred to in subsection (5) causes the death of the Sikh, and

- (b) the Sikh would have sustained some injury (other than loss of life) in consequence of the act or omission even if he had been wearing a safety helmet in compliance with the requirement in question,

the amount of any damages which, by virtue of that subsection, are recoverable in tort (or, in Scotland, in an action for reparation) in respect of that injury shall not exceed the amount of any damages which would (apart from that subsection) be so recoverable in respect of the Sikh's death.

(7) In this section—

“building operations” and “works of engineering construction” have the same meaning as in the Factories Act 1961;

1961 c. 34.

“construction site” means any place where any building operations or works of engineering construction are being undertaken;

“injury” includes loss of life, any impairment of a person's physical or mental condition and any disease;

“safety helmet” means any form of protective headgear; and

“statutory provision” means a provision of an Act or of subordinate legislation.

(8) In this section—

(a) any reference to a Sikh is a reference to a follower of the Sikh religion; and

(b) any reference to a Sikh being on a construction site is a reference to his being there whether while at work or otherwise.

(9) This section shall have effect in relation to any relevant construction site within the territorial sea adjacent to Great Britain as it has effect in relation to any construction site within Great Britain.

(10) In subsection (9) “relevant construction site” means any construction site where there are being undertaken any building operations or works of engineering construction which are activities falling within Article 7(a) of the Health and Safety at Work etc. Act 1974 (Application outside Great Britain) Order 1989.

S.I. 1989/840.

12.—(1) Where—

(a) any person applies to a Sikh any requirement or condition relating to the wearing by him of a safety helmet while he is on a construction site, and

(b) at the time when he so applies the requirement or condition that person has no reasonable grounds for believing that the Sikh would not wear a turban at all times when on such a site,

Protection of Sikhs from racial discrimination in connection with requirements as to wearing of safety helmets.

then, for the purpose of determining whether the application of the requirement or condition to the Sikh constitutes an act of discrimination falling within section 1(1)(b) of the Race Relations Act 1976 (indirect racial discrimination), the requirement or condition shall be taken to be one which cannot be shown to be justifiable as mentioned in subparagraph (ii) of that provision.

1976 c. 74.

(2) Any special treatment afforded to a Sikh in consequence of section 11(1) or (2) above shall not be regarded for the purposes of the Race Relations Act 1976 as giving rise, in relation to any other person, to any discrimination falling within section 1 of that Act.

(3) Subsections (7) to (10) of section 11 above shall apply for the purposes of this section as they apply for the purposes of that section.

Written statements of terms of employment

Provision of
particulars of
disciplinary
procedures.
1978 c. 44.

13.—(1) Part I of the Employment Protection (Consolidation) Act 1978 (particulars of terms of employment) shall be amended as follows.

(2) In section 2 (supplementary provisions relating to statements under section 1), the following subsection shall be substituted for subsection (4)—

“(4) No statement need be given under section 1 where—

- (a) the employee's employment began not more than six months after the end of earlier employment with the same employer,
- (b) a statement under that section, and any information subsequently required under section 4, was duly given to the employee in respect of his earlier employment, and
- (c) the terms of his present employment are the same as those of his earlier employment and any other matters falling within section 1(4) of which particulars were to be given by that statement are also unchanged,

but without prejudice to the operation of subsection (1) of section 4 if there is subsequently a change in his terms of employment or in any of those matters.”

(3) The following section shall be inserted after section 2—

“Particulars of
disciplinary
procedures not
required where
less than 20
employees.

2A.—(1) The note which, by virtue of subsection (4) of section 1, is required to be included in a statement given to an employee under that section need not comply with the following provisions of that subsection, namely—

- (a) paragraph (a),
- (b) in paragraph (b), sub-paragraph (i) and the words following sub-paragraph (ii) so far as relating to sub-paragraph (i), and
- (c) paragraph (c),

if on the date when the employee's employment began the relevant number of employees was less than twenty.

(2) In subsection (1) “the relevant number of employees”, in relation to an employee, means the number of employees employed by his employer added to the number of employees employed by any associated employer.”

(4) In section 4 (changes in terms of employment), the following subsection shall be added after subsection (5)—

“(6) Any reference in subsection (1), (3) or (4) to the terms of employment which were to be, or were, included or referred to in a statement given under section 1 shall be construed as including a reference to any other matters falling within section 1(2)(c) and (4) of which particulars were to be given by that statement.”

(5) The following subsections shall be added at the end of section 5 (exclusion of certain contracts in writing)—

“(2) If on the date when the employee’s employment began the relevant number of employees was less than twenty, any reference in subsection (1)(c) to such a note as is there mentioned shall be construed as including a reference to such a note as is mentioned in section 1(4) as it has effect with the omission of the provisions specified in section 2A(1)(a) to (c).

(3) In subsection (2) “the relevant number of employees” has the meaning given by section 2A(2).”;

and the existing provisions of section 5 shall accordingly constitute subsection (1) of that section.

Time off for trade union duties

14. In section 27(1) of the 1978 Act (duty of employer to permit employee who is an official of an independent trade union recognised by employer to take time off to carry out certain trade union duties)—

Trade union duties for which time off must be allowed by employer.

(a) the following paragraph shall be substituted for paragraph (a)—

“(a) to carry out—

(i) any duties of his, as such an official, which are concerned with negotiations with the employer that are related to or connected with any matters which fall within section 29(1) of the Trade Union and Labour Relations Act 1974 and in relation to which the trade union is recognised by the employer, or

1974 c. 52.

(ii) any other duties of his, as such an official, which are concerned with the performance, on behalf of employees of the employer, of any functions that are related to or connected with any matters falling within that provision and that the employer has agreed may be so performed by the trade union; or”; and

(b) in paragraph (b)(i), for “those duties” there shall be substituted “any such duties as are mentioned in paragraph (a)”.

Reasons for dismissal

15.—(1) In section 53(2) of the 1978 Act (employee not entitled to written statement of reasons for dismissal unless continuously employed for six months), for “six months” there shall be substituted “not less than two years”.

Period of employment necessary to qualify for statement of reasons for dismissal.

(2) In section 149(1) of the 1978 Act (general power to amend that Act), in paragraph (c), after “49(4A),” there shall be inserted “53(2),”.

Redundancy

16.—(1) In section 82 of the 1978 Act (general exclusions from right to redundancy payment), the following subsection shall be substituted for subsection (1)—

Redundancy payments: assimilation of age limits for men and women.

“(1) An employee shall not be entitled to a redundancy payment if he has before the relevant date attained the following age, that is to say—

(a) in a case where—

(i) in the business for the purposes of which he was employed there was a normal retiring age of less than sixty-five for an employee holding the position which he held, and

(ii) the age was the same whether the employee holding that position was a man or a woman,

that normal retiring age; and

(b) in any other case, the age of sixty-five.”

(2) In paragraph 4(2) of Schedule 4 to that Act (calculation of redundancy payments), for the words from ““the specified anniversary”” to “her birth,” there shall be substituted ““the specified anniversary”, in relation to an employee, means the sixty-fourth anniversary of the day of his birth,”.

Abolition of
redundancy
rebates.

17. The following provisions of the 1978 Act, namely—

(a) sections 104 and 104A (payment by Secretary of State of redundancy rebates to employers with less than ten employees), and

(b) Schedule 6 (calculation of amount of redundancy rebates), shall cease to have effect.

Insolvency

Quantification of
amounts for
purposes of
insolvency
payments.

18.—(1) Sections 122 and 123 of the 1978 Act (payments by Secretary of State on insolvency of employer) shall be amended as follows.

(2) In section 122 (payment to employee of certain unpaid debts of employer), the following subsection shall be substituted for subsection (11)—

“(11) If the Secretary of State is satisfied that he does not require such a statement in order to determine the amount of the debt that was owed to the employee on the relevant date and remains unpaid, he may make a payment under this section in respect of the debt without having received such a statement.”

(3) In section 123 (payment of unpaid contributions to occupational or personal pension scheme), the following subsection shall be substituted for subsection (9)—

“(9) If the Secretary of State is satisfied—

(a) that he does not require a statement under subsection (7) in order to determine the amount of relevant contributions that was unpaid on the date on which the employer became insolvent and remains unpaid, or

(b) that he does not require a certificate under subsection (8) in order to determine the amounts payable, paid or deducted as mentioned in subsections (3)(a) and (c) and (5),

he may make a payment under this section in respect of the contributions in question without having received such a statement or (as the case may be) such a certificate.”

19.—(1) In section 125 of the 1978 Act (transfer of rights and remedies relating to debt in respect of which payment made by Secretary of State on insolvency of employer), the following subsections shall be substituted for subsection (2)—

Recovery of insolvency payments made in respect of preferential or preferred debts.

“(2) Where a debt or any part of a debt in respect of which the Secretary of State has made a payment in pursuance of section 122 constitutes —

- (a) a preferential debt within the meaning of the Insolvency Act 1986 for the purposes of any provision of that Act (including any such provision as applied by any order made under that Act) or any provision of the Companies Act 1985; or 1986 c. 45.
1985 c. 6.
- (b) a preferred debt within the meaning of the Bankruptcy (Scotland) Act 1985 for the purposes of any provision of that Act (including any such provision as applied by section 11A of the Judicial Factors (Scotland) Act 1889), 1985 c. 66.
1889 c. 39.

then, without prejudice to the generality of subsection (1) above, there shall be included among the rights and remedies which become rights and remedies of the Secretary of State in accordance with that subsection any right arising under any such provision by reason of the status of the debt or that part of it as a preferential or preferred debt.

(2A) In computing for the purposes of any provision mentioned in subsection (2)(a) or (b) above the aggregate amount payable in priority to other creditors of the employer in respect of—

- (a) any claim of the Secretary of State to be so paid by virtue of subsection (2) above; and
- (b) any claim by the employee to be so paid made in his own right,

any claim falling within paragraph (a) above shall be treated as if it were a claim of the employee; but the Secretary of State shall be entitled, as against the employee, to be so paid in respect of any such claim of his (up to the full amount of the claim) before any payment is made to the employee in respect of any claim falling within paragraph (b) above.”

(2) The following subsections shall be inserted after subsection (3) of that section—

“(3A) Where the Secretary of State makes any such payment as is mentioned in subsection (3) above and the sum (or any part of the sum) falling to be paid by the employer on account of the contributions in respect of which the payment is made constitutes—

- (a) a preferential debt within the meaning of the Insolvency Act 1986 for the purposes of any provision mentioned in subsection (2)(a) above; or
- (b) a preferred debt within the meaning of the Bankruptcy (Scotland) Act 1985 for the purposes of any provision mentioned in subsection (2)(b) above,

then, without prejudice to the generality of subsection (3) above, there shall be included among the rights and remedies which become rights and remedies of the Secretary of State in accordance with that

subsection any right arising under any such provision by reason of the status of that sum (or that part of it) as a preferential or preferred debt.

(3B) In computing for the purposes of any provision referred to in subsection (3A)(a) or (b) above the aggregate amount payable in priority to other creditors of the employer in respect of—

- (a) any claim of the Secretary of State to be so paid by virtue of subsection (3A) above; and
- (b) any claim by the persons competent to act in respect of the scheme,

any claim falling within paragraph (a) above shall be treated as if it were a claim of those persons; but the Secretary of State shall be entitled, as against those persons, to be so paid in respect of any such claim of his (up to the full amount of the claim) before any payment is made to them in respect of any claim falling within paragraph (b) above."

Pre-hearing reviews

Pre-hearing
review of
proceedings
before industrial
tribunal.

20. In Schedule 9 to the 1978 Act (procedure etc. of industrial tribunals), the following paragraph shall be inserted after paragraph 1—

"1A.—(1) The regulations may include provision—

- (a) for authorising a preliminary consideration of proceedings before an industrial tribunal ("a pre-hearing review") to be carried out—
 - (i) by such person as may be determined by or in accordance with the regulations, or
 - (ii) if so determined in accordance with the regulations, by the tribunal itself; and
- (b) for enabling such powers to be exercised in connection with a pre-hearing review as may be prescribed by the regulations.

(2) The regulations may in particular include provision—

- (a) for authorising any person or tribunal carrying out a pre-hearing review under the regulations to make, in circumstances specified in the regulations, an order requiring a party to the proceedings in question, if he wishes to continue to participate in those proceedings, to pay a deposit of an amount not exceeding £150;
- (b) for prescribing—
 - (i) the manner in which the amount of any such deposit is to be determined in any particular case,
 - (ii) the consequences of non-payment of any such deposit, and
 - (iii) the circumstances in which any such deposit, or any part of it, may be refunded to the party who paid it, or be paid over to another party to the proceedings.

(3) The Secretary of State may from time to time by order substitute for the sum specified in sub-paragraph (2)(a) such other sum as is specified in the order."

Removal of requirement to register storage of film

21. In section 1(1) of the Celluloid and Cinematograph Film Act 1922 (general safety provisions relating to storage of celluloid film), paragraph (a) (requirement to notify local authority of storage of such film) shall cease to have effect.

Removal of requirement to notify local authority of storage of celluloid film. 1922 c. 35.

Dissolution of Training Commission

22.—(1) The Training Commission shall be dissolved on the date on which this Act is passed.

Dissolution of Training Commission.

(2) Subject to subsection (3), all the property, rights and liabilities to which the Training Commission was entitled or subject immediately before that date shall on that date become property, rights and liabilities of the Secretary of State for Employment.

(3) Any liability in respect of pensions, superannuation allowances or gratuities which, but for the passing of this Act, would have arisen or existed on or after that date as a liability of the Training Commission to or in respect of the chairman or any former chairman of the Commission shall instead be a liability of the Paymaster General.

(4) The Industrial Training Act 1982 shall have effect subject to the amendments specified in Schedule 4 to this Act (by virtue of which functions of the Training Commission under that Act are transferred to the Secretary of State).

1982 c. 10.

(5) Schedule 5 to this Act shall have effect for the purpose of supplementing the provisions of this section.

(6) References in this Act to property, rights and liabilities of the Training Commission are references to all such property, rights and liabilities, whether or not capable of being transferred or assigned by the Commission.

Industrial training boards

23. In section 1 of the Industrial Training Act 1982 (establishment of industrial training boards), the following subsection shall be substituted for subsections (4) and (5)—

Consultation in connection with industrial training orders.

“(4) Before making an industrial training order the Secretary of State shall consult—

(a) such organisations or associations of organisations appearing to him to be representative of substantial numbers of employers, and such bodies established for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, as he thinks fit; and

(b) such other organisations, associations or bodies (if any) as he thinks fit.”

Transfer of
assets or staff of
industrial
training boards.
1982 c. 10.

24.—(1) The following sections shall be inserted after section 3 of the Industrial Training Act 1982—

“Transfer of
assets on
revocation or
amendment of
industrial
training order.

3A.—(1) Where an order has been made under section 1 above which—

- (a) revokes an industrial training order, or
- (b) amends such an order so as to exclude from the scope of operation of an industrial training board some of the activities in relation to which it exercises functions,

the board concerned—

- (i) may with the consent of the Secretary of State, or
- (ii) shall if he so directs,

transfer all or any of its assets to any person on trust to be used for charitable purposes which are related to or connected with training for employment.

(2) A transfer under subsection (1) above may be made for a consideration which is less than the market value of the assets transferred or for no consideration; and different assets may be transferred by a board under that subsection to different persons.

(3) It is hereby declared that a transfer under subsection (1) above may be made in a case where an industrial training order is revoked even if the assets of the board concerned are (or will be after the transfer) insufficient to meet its liabilities and the expenses of the winding up of the board in pursuance of section 4(1) below.

(4) Subject to subsection (5) below, the provisions of section 15(5) to (9) below shall apply in relation to any direction given by the Secretary of State under subsection (1) above as they apply in relation to any direction given by him under section 15(1) or (2) below.

(5) Where any such direction is given in a case where an industrial training order is revoked, those provisions shall so apply with the omission from section 15(6) below of the words from “during such period” onwards.

Transfer of staff
employed by
boards.

3B.—(1) If arrangements are made (whether in connection with a transfer of assets under section 3A(1) above or otherwise) for any activities of an industrial training board to be carried on by some other person (“the transferee”) as from a particular date, this section shall have effect in relation to any employee of the board who, immediately before that date, was employed wholly or mainly in connection with those activities.

(2) The Transfer of Undertakings (Protection of Employment) Regulations 1981 shall apply in relation to any such employee of the board in accordance with subsection (3) below.

(3) For the purposes of the application of those Regulations in relation to any such employee, the activities referred to in subsection (1) above shall (whether or not they would otherwise be so regarded) be regarded—

- (a) as constituting an undertaking within the meaning of those Regulations which is transferred from the board to the transferee on the date referred to in that subsection, and
- (b) as being so transferred by a transfer to which those Regulations apply and which is completed on that date.

(4) A certificate issued by an industrial training board, in connection with any such arrangements as are referred to in subsection (1) above, to the effect that a person was, immediately before the date referred to in that subsection, employed by the board wholly or mainly in connection with the activities to which the arrangements relate shall be conclusive evidence of the facts stated in the certificate."

(2) In section 4(2) of the Industrial Training Act 1982 (winding up of industrial training boards), the following provisions shall be substituted for paragraph (b)— 1982 c. 10.

- "(b) for any assets of the board which are not required to meet those liabilities and expenses to be transferred to the Secretary of State and for those assets to be applied for purposes specified in the order.

Any reference in this subsection to the assets of the board is a reference to the assets (if any) held by it after the making of any transfer or transfers under section 3A(1) above."

25.—(1) In Schedule 1 to the Industrial Training Act 1982 (constitution etc. of industrial training boards), the following paragraph shall be substituted for paragraph 3— Constitution of industrial training boards.

"3.—(1) An industrial training board shall consist of—

- (a) a chairman and, if the Secretary of State thinks fit, a deputy chairman, each of whom shall be a person appearing to the Secretary of State to have industrial or commercial experience;
- (b) such number of persons appointed after the appropriate consultation as the Secretary of State thinks fit; and
- (c) such other persons (if any) whom it appears to the Secretary of State to be appropriate to appoint in addition to those appointed by virtue of paragraph (b) above.

(2) A person appointed by virtue of sub-paragraph (1)(b) above shall at the time of his appointment be a person appearing to the Secretary of State to be concerned (whether as a director, manager or sole proprietor or otherwise) in the management of the activities, or any of the activities, of an employer engaging in the industry; and the reference in that provision to the appropriate consultation is a reference to consultation with such organisations, or associations of organisations, representative of employers engaging in the industry as appear to the Secretary of State to be appropriate.

(3) The Secretary of State shall not make any appointment by virtue of sub-paragraph (1)(c) above if to do so would result in the number of persons for the time being appointed by virtue of that provision being equal to, or greater than, the number of persons for the time being appointed by virtue of sub-paragraph (1)(b) above.

(4) References in the following provisions of this Schedule to a chairman include a deputy chairman."

(2) Subject to subsection (4) below, the Secretary of State may reconstitute the membership of an industrial training board as from any time after the passing of this Act—

(a) by terminating such of the appointments of its existing members as would otherwise expire after that time, and

(b) by making fresh appointments to it, as from that time, in accordance with the provisions substituted by subsection (1) above.

(3) The termination of a person's appointment to an industrial training board in accordance with paragraph (a) of subsection (2) above shall not preclude him from being re-appointed to the board in pursuance of paragraph (b) of that subsection.

(4) The power conferred on the Secretary of State by subsection (2) above shall not be exercisable in relation to an industrial training board if all of its members were appointed to it in accordance with the provisions substituted by subsection (1) above (whether they were so appointed in pursuance of subsection (2)(b) above or otherwise).

Transfer of staff employed in Skills Training Agency

Transfer of staff
employed in
Skills Training
Agency.

26.—(1) If the Secretary of State makes arrangements—

(a) for any designated undertaking to be carried on by some other person as from a particular date, and

(b) for that person to become the employer of the persons who, immediately before that date, are employed in the civil service of the State in that undertaking,

this section shall have effect in relation to those employees.

(2) In this section—

"designated undertaking" means such activities as the Secretary of State may by order designate for the purposes of this section, being—

(a) all or any of the activities for the time being carried on at or from any Skillcentre specified in the order, or

(b) all or any of the activities so carried on at or from any two or more Skillcentres so specified, or

(c) any other activities for the time being carried on by the Skills Training Agency;

“the new employer” means the person referred to in subsection (1)(a);

“the relevant employees” means the employees referred to in subsection (1)(b); and

“the specified date” means the date referred to in subsection (1)(a).

(3) The Transfer of Undertakings (Protection of Employment) Regulations 1981 shall apply in relation to the relevant employees in accordance with subsections (4) and (5). S.I. 1981/1794.

(4) For the purposes of the application of those Regulations in relation to any of those employees, the designated undertaking referred to in subsection (1)(a) shall (whether or not it would otherwise be so regarded) be regarded—

(a) as an undertaking within the meaning of those Regulations which is transferred from the Secretary of State to the new employer on the specified date, and

(b) as being so transferred by a transfer to which those Regulations apply and which is completed on that date.

(5) Those Regulations shall apply in relation to any of the relevant employees as if, as respects any time before the specified date—

(a) any reference to a person’s contract of employment included a reference to his employment in the civil service of the State or to the terms of that employment, as the context may require, and

(b) any reference to the dismissal of a person included a reference to the termination of his employment in that service.

(6) Where any person is, in pursuance of any arrangements falling within subsection (1), to cease to be employed in the civil service of the State and to become employed by the new employer, none of the agreed redundancy procedures applicable to persons employed in that service shall apply to him.

(7) Where, in pursuance of any such arrangements, a person ceases to be employed in the civil service of the State and becomes employed by the new employer, he shall not, on ceasing to be employed in that service, be treated for the purposes of any scheme under section 1 of the Superannuation Act 1972 as having been retired on redundancy. 1972 c. 11.

(8) A certificate issued by the Secretary of State to the effect that a person was, immediately before a particular date, employed in the civil service of the State in a designated undertaking shall be conclusive evidence of the facts stated in the certificate.

General

27.—(1) An Order in Council under paragraph 1(1)(b) of Schedule 1 to the Northern Ireland Act 1974 (legislation for Northern Ireland in the interim period) which states that it is made only for purposes corresponding to those of any of the following provisions of this Act, namely, sections 1 to 6, 7(1), 8 to 11 and 16 to 19— Power to make corresponding provision for Northern Ireland.
1974 c. 28.

(a) shall not be subject to paragraph 1(4) and (5) of that Schedule (affirmative resolution of both Houses of Parliament), but

- (b) shall be subject to annulment in pursuance of a resolution of either House.

1973 c. 36.

(2) It is hereby declared that for the purposes of the Northern Ireland Constitution Act 1973 a provision contained in—

- (a) an Order in Council under paragraph 1(1)(b) of Schedule 1 to the said Act of 1974 which states that it is made only for purposes corresponding to section 1, 2, 6 or 10(3) to (6) of this Act, or

S.I. 1979/1573
(N.I. 12).

- (b) any statutory rule for the purposes of the Statutory Rules (Northern Ireland) Order 1979 made under such an Order as is mentioned in paragraph (a),

is not a provision dealing with an excepted matter.

Orders.

28.—(1) Any power to make an order under this Act shall be exercisable by statutory instrument.

(2) The Secretary of State shall consult the Equal Opportunities Commission before making—

- (a) an order under section 2 which makes any amendment or repeal of any provision of an Act, or
- (b) an order under section 6.

(3) An order of one of the following descriptions, namely—

- (a) such an order under section 2 as is mentioned in subsection (2)(a), or
- (b) an order under section 6(1)(a) which preserves the effect of any provision of an Act,

shall not be made unless a draft of it has been laid before and approved by resolution of each House of Parliament.

(4) Any statutory instrument containing an order under this Act other than—

- (a) an order to which subsection (3) applies,
- (b) an order under section 26, or
- (c) an order under section 30,

shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) An order under this Act may contain such consequential or transitional provisions or savings as appear to the Secretary of State to be necessary or expedient.

Interpretation,
minor and
consequential
amendments,
repeals, etc.
1975 c. 65.
1978 c. 44.

29.—(1) In this Act—

“the 1975 Act” means the Sex Discrimination Act 1975;

“the 1978 Act” means the Employment Protection (Consolidation) Act 1978;

“act” includes a deliberate omission;

“subordinate legislation” has the same meaning as in the Interpretation Act 1978;

“vocational training” includes advanced vocational training and retraining.

1978 c. 30.

(2) Any reference in this Act to vocational training shall be construed as including a reference to vocational guidance.

(3) The enactments mentioned in Schedule 6 shall have effect subject to the minor and consequential amendments specified in that Schedule.

(4) The enactments mentioned in Schedule 7 (which include some spent provisions) are hereby repealed to the extent specified in the third column of that Schedule.

(5) The instruments mentioned in Schedule 8 are hereby revoked to the extent specified in the third column of that Schedule.

(6) The transitional provisions and savings contained in Schedule 9 shall have effect.

30.—(1) This Act may be cited as the Employment Act 1989.

Short title,
commencement
and extent.

(2) The following provisions shall come into force on the day on which this Act is passed, namely—

- (a) section 8;
- (b) section 10(3) to (6);
- (c) sections 11 and 12;
- (d) section 22 and Schedules 4 and 5;
- (e) sections 23 to 28;
- (f) section 29(1) and (2);
- (g) paragraphs 9 to 15, 17 and 27 to 29 of Schedule 6 and section 29(3) so far as relating thereto;
- (h) Part I of Schedule 7 and section 29(4) so far as relating thereto;
- (i) section 29(6) and Schedule 9; and
- (j) this section.

(3) The following provisions shall come into force at the end of the period of two months beginning with the day on which this Act is passed, namely—

- (a) sections 1 to 6 and Schedule 1;
- (b) section 7;
- (c) section 9(1), (2) and (4) to (6) and Schedule 2;
- (d) section 10(1) and Parts I and II of Schedule 3 except so far as they repeal section 1(3) of, and Part II of the Schedule to, the Employment of Women, Young Persons, and Children Act 1920 and section 119A of the Factories Act 1961;
- (e) section 10(2) and Part III of Schedule 3;
- (f) sections 16 to 19;
- (g) section 21;
- (h) paragraphs 3 to 5, 7, 8, 16, 20 to 25 and 30 of Schedule 6 and section 29(3) so far as relating thereto;
- (i) Part II of Schedule 7 and section 29(4) so far as relating thereto; and
- (j) section 29(5) and Schedule 8.

1920 c. 65.
1961 c. 34.

(4) The remainder of this Act shall come into force on such day as the Secretary of State may appoint by order, and different days may be appointed for different provisions or for different purposes.

(5) With the exception of the provisions mentioned in subsection (6), this Act does not extend to Northern Ireland.

(6) Those provisions are—

(a) sections 10(1) and (2) and 29(3) and (4) and Schedules 3, 6 and 7 so far as they amend or repeal any enactment which extends to Northern Ireland (other than an enactment contained in the Celluloid and Cinematograph Film Act 1922);

1922 c. 35.

(b) section 10(6);

(c) paragraph 2 of Schedule 5 and section 22(5) so far as relating thereto;

(d) section 27 (which extends only to Northern Ireland); and

(e) this section.

SCHEDULES

SCHEDULE 1

Section 4.

PROVISIONS CONCERNED WITH PROTECTION OF WOMEN AT WORK

Enactments

Section 61 of the Factory and Workshop Act 1901, as set out in Schedule 5 to the Factories Act 1961. 1901 c. 22.
1961 c. 34.

Section 205 of the Public Health Act 1936. 1936 c. 49.

Sections 74, 128 and 131 of the Factories Act 1961. 1961 c. 34.

Statutory instruments

Regulation 3 of the Regulations dated 21st January 1907 (Manufacture of paints and colours). S.R.&
O.1907/17.

Regulation 10 of the Regulations dated 12th August 1911 (Smelting of materials containing lead, the manufacture of red or orange lead, and the manufacture of flaked litharge). S.R.&
O.1911/752.

Regulation 1 of the Indiarubber Regulations 1922. S.R.&
O.1922/329.

Regulation 1(ii) of the Electric Accumulator Regulations 1925. S.R.&
O.1925/28.

Regulation 6(1)(i) to (vi) of the Pottery (Health and Welfare) Special Regulations 1950. S.I.1950/65.

Parts IV and V of Schedule 1 to the Ionising Radiations Regulations 1985. S.I.1985/1333.

Article 20(8) of the Air Navigation Order 1985 so far as relating to pregnancy. S.I.1985/1643.

Other instruments

Paragraph 118 of the Approved Code of Practice relating to the Control of Lead at Work Regulations 1980 (approved under section 16 of the Health and Safety at Work etc. Act 1974). S.I.1980/1248.
1974 c. 37.

The following provisions of the medical standards contained in Merchant Shipping Notice No. M 1331 (issued for the purposes of Regulation 7 of the Merchant Shipping (Medical Examination) Regulations 1983), namely— S.I.1983/808.

(a) Part X so far as relating to gynaecological conditions, and

(b) Part XI.

SCHEDULE 2

Section 9.

REVOCATION ETC. OF SUBORDINATE LEGISLATION REQUIRING DIFFERENT TREATMENT OF CERTAIN EMPLOYEES

PART I

PROVISIONS REVOKED

Article 2 of the Order dated 5th October 1917 (Tin or terne plate factories). S.R.&O.
1917/1035.

The Woollen and Worsted Textiles (Lifting of Heavy Weights) Regulations 1926. S.R.&O.
1926/1463.

- SCH. 2 Article 1(d) of the Cement Works Welfare Order 1930.
 S.R.&O.
 1930/94.
- S.I. 1948/1696. Regulation 4 of the Jute (Safety, Health and Welfare) Regulations 1948.
- S.I. 1950/65. Regulations 6(1)(x), 6(2), 6(5), 6(6) and 18(7) of the Pottery (Health and Welfare) Special Regulations 1950.

PART II

AMENDMENTS

- S.R.&O.
 1905/1103. 1. In Regulation 4(b) of the Regulations dated 17th October 1905 (Spinning by self-acting mules), omit "woman, young person, or".
2. In Regulation 12(4) of the Pottery (Health and Welfare) Special Regulations 1950, omit the words from "; and where" onwards.
3. In each of the following provisions, namely—
- S.I. 1956/1776. (a) Regulation 3(c) of the Coal and Other Mines (Sanitary Conveniences) Regulations 1956 as set out in the Schedule to the Coal and Other Mines (Sanitary Conveniences) Order 1956, and
- S.I. 1956/1778. (b) Regulation 73(b) of the Miscellaneous Mines (General) Regulations 1956 as set out in the First Schedule to the Miscellaneous Mines Order 1956,
- for "sanitary convenience provided at the mine for the use of females" substitute "water closet provided at the mine above ground".
- S.I. 1958/2110. 4. In Regulation 13(1) of the Quarries (Ropeways and Vehicles) Regulations 1958, for " , other than a male person who has attained" substitute "under".

Section 10.

SCHEDULE 3

REMOVAL OF RESTRICTIONS RELATING TO EMPLOYMENT OF YOUNG PERSONS

PART I

REPEALS RELATING TO RESTRICTIONS WITH RESPECT TO HOURS OF EMPLOYMENT AND HOLIDAYS

- 1920 c. 65. Section 1(3) of, and Part II of the Schedule to, the Employment of Women, Young Persons, and Children Act 1920 (employment of young persons in industrial undertakings at night).
- 1933 c. 12. Section 19 of the Children and Young Persons Act 1933 (power of local authority to make byelaws with respect to employment of persons under 18 other than children).
- 1937 c. 37. Section 29 of the Children and Young Persons (Scotland) Act 1937 (power of education authority to make byelaws with respect to employment of persons under 18 other than children).
- 1938 c. 69. Part I of the Young Persons (Employment) Act 1938 (hours of employment and holidays of young persons in certain occupations).
- 1950 c. 28. The following provisions of the Shops Act 1950—
 section 18 (special provisions as to half-holidays for young persons);
 section 20 and Part II of Schedule 3 (special provisions as to meal times for young persons);
 sections 24 to 36 (hours of employment of young persons);
 section 68 (option to apply either the Act or the Young Persons (Employment) Act 1938 in certain cases); and

section 72 (enforcement by local authorities under Children and Young Persons Act 1933). SCH. 3
1933 c. 12.

The following provisions of the Mines and Quarries Act 1954— 1954 c. 70.
sections 125 to 128 (hours of employment of young persons);
section 130 (special exception for emergencies); and
section 132 (supplemental provisions).

The following provisions of the Factories Act 1961— 1961 c. 34.
sections 86 to 94 (hours of employment and holidays of young persons);
sections 96 to 109 and 112 to 115 (suspension of, and exceptions from,
provisions as to hours of employment etc.);
section 116 (regulation of employment of young persons in certain
occupations);
section 138(1)(d) (posting of notices); and
section 140(1)(d) (general registers).

PART II

REPEALS RELATING TO OTHER REQUIREMENTS

The following provisions of the Mines and Quarries Act 1954—
section 124(2) (restriction on male young persons being employed below
ground); and
section 131 (register of women and young persons employed).

The following provisions of the Factories Act 1961—
section 11(1)(a)(iii) (power to require medical supervision);
section 73(1) (prohibition on employment of female young persons where
certain processes are carried on); and
section 119A (duty of factory occupier to give notice of employment of
young persons).

PART III

AMENDMENT OF CERTAIN AGE LIMITS

EMPLOYMENT OF WOMEN, YOUNG PERSONS, AND CHILDREN ACT 1920 (c.65)

1. In section 1 (obligation of employer to keep register of young persons
employed in industrial undertaking), for subsection (4) substitute—

“(4) Where persons under the age of sixteen years are employed in any
industrial undertaking, a register of all persons under that age who are so
employed, and of the dates of their birth, shall be kept and shall at all times
be open to inspection.”

CHILDREN AND YOUNG PERSONS ACT 1933 (c.12)

2. In section 20 (street trading)—

(a) for subsection (1) substitute—

“(1) Subject to subsection (2) of this section, no child shall engage
or be employed in street trading.”;

(b) in subsection (2), for the words from “regulating” to “eighteen years,”
substitute “authorising children who have attained the age of fourteen
years to be employed by their parents in street trading to such extent as
may be specified in the byelaws, and for regulating street trading under
the byelaws by persons who are so authorised to be employed in such
trading;” and

SCH. 3

- (c) in subsection (3), for the words from the beginning to "employed" substitute "Byelaws under this section shall not authorise a child to engage, or be employed, on a Sunday".

3. In section 21(3) (penalties and legal proceedings in respect of general provisions as to employment), for "person under the age of eighteen years" substitute "child".

4. In section 23 (prohibition on persons under 16 taking part in performances endangering life and limb)—

- (a) for "person under the age of sixteen years" substitute "child"; and
(b) for "such a person" substitute "a child".

5. In section 24 (restrictions on training for performances of a dangerous nature)—

- (a) in subsection (1)—
 (i) for "person", in the first place where it occurs, substitute "child", and
 (ii) for "person under the age of sixteen years" substitute "child who has attained that age"; and
(b) in subsection (2), for "person who has attained the age of twelve years but is under the age of sixteen years" substitute "child who has attained the age of twelve years".

6. In section 25 (restriction on persons under 18 going abroad for the purpose of performing for profit)—

- (a) in subsection (1), for "person under the age of eighteen years", in both places where those words occur, and for "person under that age" substitute "child"; and
(b) in subsection (2), for "person who has attained the age of fourteen years but is under the age of eighteen years" substitute "child who has attained the age of fourteen years".

7. In section 26 (punishment of contraventions of section 25, etc.)—

- (a) in subsection (1), for "the person" substitute "the child in question"; and
(b) in subsection (2)—
 (i) for "a person under the age of eighteen years" substitute "a child",
 (ii) for "that person" substitute "that child", and
 (iii) for "the person in question" substitute "the child".

8. In section 30 (interpretation of provisions about the employment of children)—

- (a) after "made thereunder—" insert—
 "The expression "child" means—

1944 c. 31.

- (a) in relation to England and Wales, a person who is not for the purposes of the Education Act 1944 over compulsory school age;

1980 c. 44.

- (b) in relation to Scotland, a person who is not for the purposes of the Education (Scotland) Act 1980 over school age; and

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(N.I.3).

- (c) in relation to Northern Ireland, a person who is not for the purposes of the Education and Libraries (Northern Ireland) Order 1986 over compulsory school age;"; and

- (b) at the end of that section add the following subsection—

“(2) This section, so far as it has effect for the purposes of sections 25 and 26 of this Act, extends to Scotland and to Northern Ireland.”; and the existing provisions of that section (as amended by sub-paragraph (a) above) shall accordingly constitute subsection (1) of that section.

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CHILDREN AND YOUNG PERSONS (SCOTLAND) ACT 1937 (c.37)

9. In section 30 (street trading)—

(a) for subsection (1) substitute—

“(1) Subject to subsection (2) of this section, no child shall engage or be employed in street trading.”; and

(b) in subsection (2), for the words from “regulating” to “eighteen years,” substitute “authorising children who have attained the age of fourteen years to be employed by their parents in street trading to such extent as may be specified in the byelaws, and for regulating street trading under the byelaws by persons who are so authorised to be employed in such trading;”.

10. In section 31(3) (penalties and legal proceedings in respect of general provisions as to employment), for “person under the age of eighteen years” substitute “child”.

11. In section 33 (prohibition on persons under 16 taking part in performances endangering life and limb)—

(a) for “person under the age of sixteen years” substitute “child”; and

(b) for “such a person” substitute “a child”.

12. In section 34 (restrictions on training for performances of a dangerous nature)—

(a) in subsection (1)—

(i) for “person”, in the first place where it occurs, substitute “child”, and

(ii) for “person under the age of sixteen years” substitute “child who has attained that age”; and

(b) in subsection (2), for “person who has attained the age of twelve years but is under the age of sixteen years” substitute “child who has attained the age of twelve years”.

13. In section 37 (interpretation of provisions about the employment of children), after “made thereunder—” insert—

“(a) The expression “child” means a person who is not for the purposes of the Education (Scotland) Act 1980 over school age;”. 1980 c. 44.

FACORIES ACT 1961 (C.34)

14. In section 117(1) (exemptions from provisions regulating hours of employment), for “of or over the age of sixteen” substitute “(other than children)”.

SCHEDULE 4

Section 22(4).

DISSOLUTION OF TRAINING COMMISSION: AMENDMENTS OF THE INDUSTRIAL TRAINING ACT 1982

1.—(1) Section 1 (establishment of industrial training boards) shall be amended as follows.

(2) In subsection (2), omit the definition of “the Commission”.

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(3) In subsection (6), omit the words from "or, in a case" to "Commission".

(4) In subsection (7), for "section 3(2)" substitute "section 3(1)(b)".

2. In section 2(1) (power of industrial training boards to delegate functions to committees with approval of Training Commission), for "Commission" substitute "Secretary of State".

3. For section 3 substitute—

"Transfer of establishments' activities from industry of one board to that of another.

3.—(1) If an employer in the industry of an industrial training board requests the Secretary of State in writing to secure that the activities carried on at a particular establishment of the employer shall, instead of being included for the purposes of this Act in that industry, be included for those purposes in the industry of another industrial training board, the Secretary of State—

(a) shall consult both boards in question about the request; and

(b) after such consultation, may if he thinks fit make an order giving effect to that request.

(2) The power to make an order under this section shall be exercisable by statutory instrument."

4.—(1) Section 5 (functions of industrial training boards) shall be amended as follows.

(2) In subsections (3)(b) and (6), for "Commission", wherever occurring, substitute "Secretary of State".

(3) In subsection (5)—

(a) for "Commission for its", in both places where those words occur, substitute "Secretary of State for his"; and

(b) for "Commission and approved by it" substitute "Secretary of State and approved by him".

5. In section 6(2) (information from employers only to be disclosed to certain persons), omit the words from "or to the Commission" onwards.

6.—(1) Section 7 (exercise of power of industrial training board to obtain information) shall be amended as follows.

(2) In subsection (1)—

(a) for the words from "Commission may" to "State," substitute "Secretary of State may"; and

(b) for the words from "Commission considers" to "purposes of its" substitute "Secretary of State considers that he needs for the purposes of his".

(3) In subsection (2), for the words from "Commission and" to "as the Commission" substitute "Secretary of State and contain such information as he".

(4) Omit subsection (3).

7.—(1) Section 8 (reports and accounts) shall be amended as follows.

(2) In subsection (1), for the words from "Commission" to "State and" substitute "Secretary of State may, with the approval of".

(3) In subsection (3), for "Commission" substitute "Secretary of State".

(4) In subsection (4), for the words from "Commission" to "and he" substitute "Secretary of State".

8. In subsection 9(1) (publication of information), omit “, after consultation with the Commission,”.

9. In subsection 10(1) (training for employment overseas), omit “of the Commission given with the approval”.

10.—(1) Section 11 (levies) shall be amended as follows.

(2) In subsection (1)—

(a) for “Commission for the Commission’s approval” substitute “Secretary of State”; and

(b) omit the words from “and the Commission” onwards.

(3) In subsection (2), for “approved by the Commission” substitute “submitted to him”.

(4) In subsection (5), for the words from “Commission” to “for that purpose” substitute “Secretary of State shall not make a levy order in pursuance of the levy proposals unless he is satisfied that they are necessary to encourage adequate training in the industry”.

11. In section 12(1) (information to be included in levy proposals)—

(a) for “Commission” substitute “Secretary of State”; and

(b) for “the Secretary of State” substitute “him”.

12.—(1) Section 13 (proposals for exemption certificates) shall be amended as follows.

(2) In subsection (1), for “Commission for its” substitute “Secretary of State for his”.

(3) In subsection (4), omit “and the Commission”.

(4) For subsection (5) substitute—

“(5) If the Secretary of State approves proposals submitted to him by a board under subsection (1) above and informs the board of his approval, the board shall arrange for them to be published as soon as practicable in a manner approved by the Secretary of State.”

13.—(1) Section 15 (default powers in relation to proposals) shall be amended as follows.

(2) In subsection (1)—

(a) for “Commission” substitute “Secretary of State”; and

(b) for “to it” substitute “to him”.

(3) For subsection (2) substitute—

“(2) Where proposals submitted to the Secretary of State under section 5(5), 11(1) or 13(1) above appear unsatisfactory to him, he may direct the board to submit fresh proposals within a specified time, stating in the direction in what respect the proposals already submitted appear to him unsatisfactory; and where the fresh proposals also appear unsatisfactory to the Secretary of State, he may make an order (in this section referred to as “a default order”) declaring the board to be in default.”

(4) Omit subsections (3) and (4).

(5) For subsection (5) substitute—

“(5) Where a board has failed to comply with a direction of the Secretary of State under subsection (1) or (2) above within the time specified in the direction, he may make a default order.”

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14. In section 16(4) (power to enable levies to be imposed in respect of establishments within enterprise zones), omit the words from “; but no such” onwards.

15.—(1) Section 17 (financial provisions) shall be amended as follows.

(2) In subsection (1), for the words from “Commission” to “State” substitute “Secretary of State may”.

(3) In subsection (2)—

(a) for “Commission”, in the first place where it occurs, substitute “Secretary of State”; and

(b) for “the Commission”, in the second place where those words occur, substitute “he”.

(4) In subsection (3)—

(a) for “Commission”, in the first place where it occurs, substitute “Secretary of State”; and

(b) for “the Commission”, in the second place where those words occur, substitute “him”.

(5) In subsection (5), for “Commission” substitute “Secretary of State”.

16.—(1) Paragraph 7 of Schedule 1 (persons entitled to attend meetings of industrial training board or committees of board) shall be amended as follows.

(2) In sub-paragraph (1), omit “, the Training Commission”.

(3) In sub-paragraph (2), for “Commission” substitute “Secretary of State”.

Section 22(5).

SCHEDULE 5

DISSOLUTION OF TRAINING COMMISSION: SUPPLEMENTARY PROVISIONS

Interpretation

1. In this Schedule—

1982 c. 10.

“the 1982 Act” means the Industrial Training Act 1982;

S.I. 1988/1905.

“the 1988 Order” means the Training Commission (Incidental and Transitional Provisions) Order 1988;

“the Commission” means the Training Commission; and

“the relevant Minister” (subject to paragraph 5(3) of this Schedule) means—

(a) in relation to any function of the Commission, the Secretary of State; and

(b) in relation to any property, right or liability of the Commission, the Secretary of State for Employment.

Incorporation of Secretary of State for Employment

2.—(1) The person who on the date on which this Act is passed is Secretary of State for Employment and his successors shall be, by that name, a corporation sole, with a corporate seal.

(2) The corporate seal of the Secretary of State for Employment shall be authenticated by the signature of a Secretary of State or of a Secretary to the Department of Employment, or by a person authorised by a Secretary of State to act for the purpose.

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(3) The corporate seal of the Secretary of State for Employment shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by the Secretary of State for Employment and to be sealed with that seal authenticated in the manner provided by sub-paragraph (2), or to be signed or executed by a Secretary to the Department of Employment, or a person authorised as mentioned in that sub-paragraph, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(4) A certificate signed by the Secretary of State for Employment that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

(5) Any document made or issued at any time before the date on which this Act is passed—

(a) by the Secretary of State for Employment (whether as such or as the Secretary of State for Employment and Productivity), or

(b) by the Minister of Labour in connection with matters which, on that date, fall within the responsibilities of the Secretary of State for Employment,

shall, if effective immediately before that date, have effect as from that date as if it had been made or issued by the Secretary of State for Employment as a corporation sole; and where the document was sealed or signed as mentioned in section 11(2) of the New Ministries and Secretaries Act 1916 (as in force at the time of the sealing or signing of the document) it shall have effect as from that date as if it had been sealed or (as the case may be) signed as mentioned in sub-paragraph (3) above. 1916 c. 68.

(6) Accordingly any document to which section 11(2) of that Act applied immediately before that date shall be treated for the purposes of sub-paragraph (3) above as if it were a document purporting to be such an instrument as is mentioned in that sub-paragraph; and the repeal by this Act of section 11(3) of that Act shall not affect the validity of any certificate issued before that date in pursuance of that provision.

Provisions as to the vesting of property etc. of Commission

3.—(1) Anything done by or in relation to the Commission, if in force or effective immediately before the date on which this Act is passed, shall have effect, so far as may be required for continuing its effect on or after that date, as if done by or in relation to the relevant Minister.

(2) Anything which immediately before that date was in the process of being done by or in relation to the Commission may be continued on or after that date by or in relation to the relevant Minister.

(3) This paragraph applies in particular to things done by or in relation to the Commission for purposes of, or in connection with, functions which are transferred to the Secretary of State by section 22(4) of, and Schedule 4 to, this Act; but sub-paragraph (1) is subject to paragraph 7 of this Schedule.

4.—(1) Any legal proceedings to which the Commission was a party immediately before the date on which this Act is passed may be continued on or after that date by or in relation to the relevant Minister.

(2) Every agreement (whether written or not), and every instrument or other document, which relates to any function, property, right or liability of the Commission shall have effect, so far as may be required for continuing its effect on or after the date on which this Act is passed, as if—

(a) where the Commission is a party to it, the relevant Minister were substituted as that party,

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- (b) for any reference to the Commission (including any reference which is to be construed as such a reference) there were substituted a reference to the relevant Minister,
- (c) for any reference (however worded and whether express or implied) to the chairman or deputy chairman or any member of the Commission (including any reference which is to be construed as such a reference) there were substituted a reference to such officer or officers as the relevant Minister shall appoint for the purpose, and
- (d) for any reference to the office or place of business of the Commission (including any reference which is to be construed as such a reference) there were substituted a reference to the principal office of the relevant Minister.

1973 c. 50.

5.—(1) The power of the Secretary of State to make determinations under paragraph 6 of Schedule 1 to the Employment and Training Act 1973 shall, notwithstanding the repeal by this Act of that paragraph, continue to be exercisable by him in relation to preserved pensions.

(2) Any function which immediately before the date on which this Act is passed was a function of the Commission in relation to preserved pensions (other than its function of making payments in respect of such pensions) shall on that date become a function of the Secretary of State.

(3) References to the relevant Minister in paragraphs 3 and 4 of this Schedule shall, in the application of those paragraphs in relation to—

- (a) the Commission's function of making payments in respect of preserved pensions, or
- (b) any liability in respect of such pensions which is transferred by section 22(3) of this Act,

be construed as references to the Paymaster General.

(4) In this paragraph "preserved pensions" means pensions, superannuation allowances or gratuities in respect of which liabilities are transferred to the Paymaster General by section 22(3) of this Act.

Final accounts

6.—(1) The Secretary of State shall not later than eight months after the date on which this Act is passed prepare and send to the Comptroller and Auditor General a statement of accounts relating to the Commission in respect of the period between the end of the accounting year for which the last statement of accounts under paragraph 14 of Schedule 1 to the Employment and Training Act 1973 was prepared and the date on which this Act is passed.

(2) The statement of accounts prepared under sub-paragraph (1) shall be in such form as the Treasury may approve.

(3) The Comptroller and Auditor General shall examine, certify and report on the statement sent to him under sub-paragraph (1) and shall lay copies of the statement and of his report before each House of Parliament.

Provisions relating to the 1982 Act

7. Where anything done by the Commission before the date on which this Act is passed for the purposes of any provision of the 1982 Act required the approval of the Secretary of State, it shall not have effect by virtue of paragraph 3(1) of this Schedule as if done by the Secretary of State unless it was done with his approval.

8. It is hereby declared for the avoidance of doubt that where before the date on which this Act is passed—

- (a) levy proposals were approved by the Commission under section 11(1) of the 1982 Act, or

- (b) proposals for the issue of exemption certificates were approved by the Commission under section 13 of the 1982 Act,

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the proposals shall not by virtue of paragraph 3(1) of this Schedule be taken to have been approved by the Secretary of State.

9.—(1) For the purposes of subsection (4) of section 1 of the 1982 Act (as substituted by section 23 of this Act) any consultation carried out by the Commission in pursuance of subsection (5) of that section before the date on which this Act is passed in connection with a proposed industrial training order shall be taken to have been carried out by the Secretary of State in connection with that proposed order.

(2) For the purposes of subsection (1) of section 3 of the 1982 Act (as substituted by paragraph 3 of Schedule 4 to this Act), any consultation carried out by the Commission in pursuance of that subsection before that date in connection with a request made under that subsection shall be taken to have been carried out by the Secretary of State in connection with that request.

(3) For the purposes of section 15 of the 1982 Act (as amended by paragraph 13 of that Schedule)—

- (a) any direction of the Commission given before that date under section 15(1) shall have effect as if given by the Secretary of State under section 15(1) (as so amended),
- (b) any direction of the Commission given before that date under section 15(2) or (3) shall have effect as if given by the Secretary of State under section 15(2) (as so amended),
- (c) any proposals submitted to the Commission before that date in pursuance of a direction under section 15(1) shall be taken to have been submitted to the Secretary of State in pursuance of a direction given by him under section 15(1) (as so amended), and
- (d) any proposals submitted to the Commission before that date in pursuance of a direction under section 15(2) or (3) shall be taken to have been submitted to the Secretary of State in pursuance of a direction given by him under section 15(2) (as so amended).

(4) Sub-paragraphs (1) to (3) are without prejudice to the generality of paragraph 3 of this Schedule.

Notifications of vacancies etc. for purposes of unemployment benefit

10.—(1) For the purposes of section 20 of the Social Security Act 1975, where any person before the date on which this Act is passed—

1975 c. 14.

- (a) has been notified by the Commission that a situation in any employment is or is about to become vacant, or
- (b) has been given recommendations in writing by an officer of the Commission with a view to assisting that person to find employment,

he shall, on or after that date, be taken to have been so notified, or to have been given the recommendations, by the Secretary of State.

(2) Sub-paragraph (1) is without prejudice to the generality of paragraph 3 of this Schedule.

Saving of 1988 Order

11. Any provisions of the 1988 Order having effect immediately before the date on which this Act is passed shall continue in force notwithstanding the repeal by this Act of provisions of Schedule 2 to the Employment Act 1988.

1988 c. 19.

Section 29(3).

SCHEDULE 6

MINOR AND CONSEQUENTIAL AMENDMENTS

EMPLOYMENT OF WOMEN, YOUNG PERSONS, AND CHILDREN ACT 1920 (c.65)

1. In section 1(6) (enforcement of restrictions on employment of women etc.)—

(a) for paragraph (a) substitute—

“(a) The following provisions, namely—

1933 c. 12.

(i) sections 21(1) and (2) and 28(1) and (3) of the Children and Young Persons Act 1933,

1937 c. 37.

(ii) sections 31(1) and (2) and 36(1) and (3) of the Children and Young Persons (Scotland) Act 1937, or

1968 c. 34 (N.I.).

(iii) sections 39(1) and (3) to (5) and 45(1), (3) and (4) of the Children and Young Persons Act (Northern Ireland) 1968,

shall have effect in relation to the employment of a child in an industrial undertaking in contravention of this Act as they have effect in relation to the employment of a child in contravention of Part II of that Act of 1933, of Part III of that Act of 1937 or of Part III of that Act of 1968, as the case may be; and”; and

(b) in paragraph (c), for “young person” substitute “person under the age of sixteen years”.

2. In section 4 (interpretation), in the definition of industrial undertaking, for the words from “with respect” to “Parts I, II” substitute “the meaning assigned to it by Part I”.

SHOPS ACT 1950 (c. 28)

3. In section 44(2) (exemptions for post offices), for “sections seventeen to twenty” substitute “section seventeen or nineteen”.

4. In section 45 (exemption for fairs, etc. and non-profit-making libraries), for “sections seventeen to twenty-one or section” substitute “section seventeen, nineteen, twenty-one or”.

5. In section 69(1)(e) (regulations), for “to twenty-one and section” substitute “, nineteen, twenty-one and”.

FABRIQUES ACT 1961 (c. 34)

6. In section 176(5) (application of provisions of Act to young persons employed outside factories) for the words from “the provisions” to “expressly provided,” substitute “section 119 of this Act shall not apply”.

CHILDREN AND YOUNG PERSONS ACT 1963 (c. 37)

7. In section 41(1) (licences for training persons between 12 and 16 for performances of a dangerous nature), for “persons under the age of sixteen” substitute “children”.

8. In section 42(1) (licences for children and young persons performing abroad), for “persons under eighteen” substitute “children”.

EMPLOYMENT AND TRAINING ACT 1973 (c. 50)

9.—(1) Section 4 (disclosure of certain information) shall be amended as follows.

(2) In subsection (3)—

(a) for “said Act of 1947” substitute “Statistics of Trade Act 1947”;

(b) omit paragraphs (a) and (b);

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- (c) for paragraph (c) substitute—
 “(c) the disclosure by the Secretary of State to a board of relevant information;”;
- (d) in paragraph (e), omit “or the Commission” wherever occurring; and
- (e) in paragraph (f), omit the words from “to a person” to “acting jointly.”
- (3) After subsection (3) insert—
 “(3A) Where the Secretary of State discloses information to a board or any other person under subsection (3)(c) or (f) of this section, he shall give a notice in writing to that person specifying the purposes for which the information may be used.”
- (4) In subsection (5)(c) for “that paragraph” substitute “subsection (3A) of this section”.

HEALTH AND SAFETY AT WORK ETC. ACT 1974 (c. 37)

10.—(1) Section 27 (obtaining and disclosure of certain information) shall be amended as follows.

(2) In subsection (2), omit paragraph (b) and the word “or” immediately preceding it.

(3) In subsection (3), for the words from “, the Executive” to “Agencies” substitute “or the Executive”.

11.—(1) Section 55 (functions of employment medical advisory service) shall be amended as follows.

(2) In subsection (1)(a), omit “, the Training Commission”.

(3) In subsection (6)(b), for “Commissions there mentioned” substitute “Health and Safety Commission”.

SEX DISCRIMINATION ACT 1975 (c. 65)

12. In section 16(2)(b) (discrimination in provision of facilities or services under section 2 of the Employment and Training Act 1973), for “body” substitute “Secretary of State”. 1973 c. 50.

SCOTTISH DEVELOPMENT AGENCY ACT 1975 (c. 69)

13. In section 11(6) (disclosure of certain information)—

(a) omit the words from “, the Training Commission” to “Training Services Agency”; and

(b) for “Commission and Agencies” substitute “Secretary of State”.

WELSH DEVELOPMENT AGENCY ACT 1975 (c. 70)

14. In section 24(6) (disclosure of certain information)—

(a) omit the words from “, the Training Commission” to “Training Services Agency”; and

(b) for “Commission and Agencies” substitute “Secretary of State”.

RACE RELATIONS ACT 1976 (c. 74)

15. In section 15(2)(b) (discrimination in provision of facilities or services under section 2 of the Employment and Training Act 1973), for “body” substitute “Secretary of State”.

16. In section 74(1) (orders and regulations), for “sections 13(2)(d), 37(3)(b) and” substitute “section”.

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DEVELOPMENT OF RURAL WALES ACT 1976 (C. 75)

17.—(1) Section 17 (disclosure of certain information) shall be amended as follows.

(2) In subsection (1), omit the words from “, the Training Commission” to “Training Services Agency,”.

(3) In subsection (2), for “Commission and Agencies” substitute “Secretary of State”.

EMPLOYMENT PROTECTION (CONSOLIDATION) ACT 1978 (C. 44)

18. In section 1(4) (written particulars of terms of employment), after “subsection (5)” insert “and section 2A(1)”.

19. For section 32 substitute—

“Provisions
supplementary to
ss. 27 to 31A.

32.—(1) For the purposes of sections 27 to 31A the working hours of an employee shall be taken to be any time when, in accordance with his contract of employment, he is required to be at work.

(2) For the purposes of sections 27 and 28 a trade union shall be taken to be recognised by an employer if it is recognised by him, to any extent, for the purpose of collective bargaining, that is to say, negotiations related to or connected with one or more of the matters specified in section 29(1) of the Trade Union and Labour Relations Act 1974.”

1974 c. 52.

20. In section 103(1) (establishment and maintenance of Redundancy Fund), for “104” substitute “105”.

21.—(1) Section 106 (payments out of fund to employees) shall be amended as follows.

(2) After subsection (1) insert—

“(1A) In this Act “employer’s payment”, in relation to an employee, means—

- (a) a redundancy payment which his employer is liable to pay to him under the foregoing provisions of this Part, or
- (b) a payment which his employer is, under an agreement in respect of which an order is in force under section 96, liable to make to him on the termination of his contract of employment.

(1B) In relation to a case where, under section 85, 92 or 110, an industrial tribunal determines that an employer is liable to pay only part of a redundancy payment, the reference in subsection (1A)(a) above to a redundancy payment shall be construed as a reference to that part of the redundancy payment.”

(3) In subsection (2), for “section 104(1)” substitute “subsection (1A)”.

(4) Omit subsection (4).

22. For section 108 substitute—

“References to
tribunal relating
to payments
under s.106.

108.—(1) Where on an application made to the Secretary of State for a payment under section 106 it is claimed that an employer is liable to pay an employer’s payment, there shall be referred to an industrial tribunal—

- (a) any question as to the liability of the employer to pay the employer’s payment; and
- (b) any question as to the amount of the sum payable in accordance with Schedule 7.

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(2) For the purposes of any reference under this section an employee who has been dismissed by his employer shall, unless the contrary is proved, be presumed to have been so dismissed by reason of redundancy."

23. In section 127(2)(a) (interpretation of sections 122 to 126), for "an award of sequestration is made on his estate" substitute "sequestration of his estate is awarded".

24. In section 153(1) (interpretation), for the definition of "employer's payment" substitute—

"“employer's payment” has the meaning given by section 106(1A) and (1B);”.

25.—(1) Schedule 7 (calculation of payments to employees out of Redundancy Fund) shall be amended as follows.

(2) In paragraph 1(2), for "section 104(6)" substitute "section 106(1B)".

(3) For paragraph 2 substitute—

"2.—(1) Where the employer's payment is not a redundancy payment or part of a redundancy payment, the sum referred to in section 106(2) is a sum equal to—

- (a) the amount of the employer's payment, or
- (b) the amount of the relevant redundancy payment,

whichever is less.

(2) The reference in sub-paragraph (1)(b) to the amount of the relevant redundancy payment is a reference to the amount of the redundancy payment which the employer would have been liable to pay to the employee if—

- (a) the order in force in respect of the agreement as mentioned in section 106(1A)(b) had not been made;
- (b) the circumstances in which the employer's payment is payable had been such that the employer was liable to pay a redundancy payment to the employee in those circumstances;
- (c) the relevant date, in relation to any such redundancy payment, had been the date on which the termination of the employee's contract of employment is treated for the purposes of the agreement as having taken effect; and
- (d) in so far as the provisions of the agreement which relate to the following matters, that is to say—
 - (i) the circumstances in which the continuity of an employee's period of employment is to be treated as broken, and
 - (ii) the weeks which are to count in computing a period of employment,are inconsistent with the provisions of Schedule 13 as to those matters, those provisions of the agreement were substituted for those provisions of that Schedule.

(3) In sub-paragraph (2) "the agreement" means the agreement falling within section 106(1A)(b) by reference to which the employer's payment is payable."

26. In paragraph 1(2) of Schedule 9 (regulations as to procedure of industrial tribunals), for paragraph (e) substitute—

"(e) for enabling an industrial tribunal, on the application of any party to proceedings before it or of its own motion, to order—

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(i) in England and Wales, such discovery or inspection of documents, or the furnishing of such further particulars, as might be ordered by a county court on an application by a party to proceedings before it, or

(ii) in Scotland, such recovery or inspection of documents as might be ordered by the sheriff;”.

LOCAL GOVERNMENT, PLANNING AND LAND ACT 1980 (C. 65)

27. In section 20, for subsection (4) substitute—

“(4) Notwithstanding anything in subsection (1) above, in this Act “construction or maintenance work” does not include work undertaken by a local authority or a development body pursuant to an agreement made (or having effect as if made) with the Secretary of State on or after 1st April 1982—

1973 c. 50.

- (a) which is made by virtue of any provision of the Employment and Training Act 1973;
- (b) which specifies the work to be undertaken by the authority or body; and
- (c) under which the whole or part of the cost of the work so specified is to be paid by the Secretary of State.”

AGRICULTURAL TRAINING BOARD ACT 1982 (C. 9)

28. In paragraph 6 of Schedule 1 (right to nominate person to attend meetings of Agricultural Training Board), for “Training Commission” substitute “Minister concerned with employment in England and Wales, the Minister concerned with employment in Scotland”.

INDUSTRIAL TRAINING ACT 1982 (C. 10)

29. In paragraph 6 of Schedule 1 (persons entitled to vote in connection with a levy), for the words from “sub-paragraph (a)” to “that sub-paragraph” substitute “sub-paragraph (1)(b) of paragraph 3 above”.

SEX DISCRIMINATION ACT 1986 (C. 59)

30. In section 5(1) (discrimination required by public entertainment licences)—

- (a) at the beginning insert “Without prejudice to the generality of section 1(1) of the Employment Act 1989,”; and
- (b) omit the words from “, apart from” to “authority),”.

SCHEDULE 7

Section 29(4).

REPEALS

PART I

REPEALS COMING INTO FORCE ON ROYAL ASSENT

Chapter	Short title	Extent of repeal
1916 c. 68.	New Ministries and Secretaries Act 1916.	The whole Act.
1967 c. 13.	Parliamentary Commissioner Act 1967.	In Schedule 2, the entry relating to the Training Commission.
1973 c. 50.	Employment and Training Act 1973.	Section 1. Section 2(4) and (6). Section 3. In section 4, subsections (1) and (2), in subsection (3) paragraphs (a) and (b), the words "or the Commission" wherever occurring in paragraph (e) and the words from "to a person" to "acting jointly," in paragraph (f), in subsection (4) the words "the Commission", in subsection (5) paragraphs (a) and (b) and " (d)" in paragraph (c), and subsection (6). In section 5(3)(a), the words from "or with a function" onwards. Section 11(1). In section 12, in subsection (1) the words from "and of the Commission" to "this Act" and the words "or it", and in subsections (1A) and (2) the words "of the Commission and" wherever occurring. In section 13(1), the definitions of "the Commission" and "modifications". Schedule 1. In Schedule 3, paragraph 9.
1974 c. 37.	Health and Safety at Work etc. Act 1974.	Section 27(2)(b) and the word "or" immediately preceding it. In section 55(1)(a), the words "the Training Commission".

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Chapter	Short title	Extent of repeal
1975 c. 14.	Social Security Act 1975.	In section 20(5), the words "the Training Commission," wherever occurring.
1975 c. 24.	House of Commons Disqualification Act 1975.	In Part III of Schedule 1, the entry relating to the chairman of the Training Commission.
1975 c. 25.	Northern Ireland Assembly Disqualification Act 1975.	In Part III of Schedule 1, the entry relating to the chairman of the Training Commission.
1975 c. 65.	Sex Discrimination Act 1975.	Section 14(2)(b). In section 16(1), the words "or the Training Commission".
1975 c. 69.	Scottish Development Agency Act 1975.	In section 11(6), the words from "the Training Commission" to "Training Services Agency".
1975 c. 70.	Welsh Development Agency Act 1975.	In section 24(6), the words from "the Training Commission" to "Training Services Agency".
1975 c. 71.	Employment Protection Act 1975.	In Schedule 14, paragraphs 1, 4 and 5.
1976 c. 74.	Race Relations Act 1976.	Section 13(2)(b). In section 15(1), the words "or the Training Commission".
1976 c. 75.	Development of Rural Wales Act 1976.	In section 17(1), the words from "the Training Commission" to "Training Services Agency".
1981 c. 57.	Employment and Training Act 1981.	In section 10(2), the words "the Training Commission,". In Schedule 2, Part I, and in Part II paragraphs 8, 9, 12, 14, 15, 17, 19 and 21.
1982 c. 9.	Agricultural Training Board Act 1982.	In section 4(1)(f), "3".
1982 c. 10.	Industrial Training Act 1982.	In section 1, in subsection (2), the definition of "the Commission" and, in subsection (6), the words from "or, in a case" to "Commission". In section 5(3)(e), "3". In section 6(2), the words from "or to the Commission" onwards. Section 7(3).

Chapter	Short title	Extent of repeal
1982 c.10— <i>cont.</i>	Industrial Training Act 1982— <i>cont.</i>	In section 9(1), the words “, after consultation with the Commission,”. In section 10(1), the words “of the Commission given with the approval”. In section 11(1), the words from “and the Commission” onwards. In section 13(4), the words “and the Commission”. Section 15(3) and (4). In section 16(4), the words from “; but no such” onwards. In Schedule 1, in paragraph 7(1), the words “, the Training Commission”.
1982 c. 30.	Local Government (Miscellaneous Provisions) Act 1982.	In section 45(1), the words “the Training Commission or”.
1982 c. 43.	Local Government and Planning (Scotland) Act 1982.	In section 8, the words “the Training Commission or”.
1988 c. 9.	Local Government Act 1988.	In Schedule 6, paragraph 10(5).
1988 c. 19.	Employment Act 1988.	Section 24. Section 29(1) so far as relating to the Industrial Training Act 1982. In Schedule 2, paragraphs 2(1)(b) and 3 to 8. In Schedule 3, in Part II, paragraphs 7 to 10 and 14(2).

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PART II

REPEALS COMING INTO FORCE TWO MONTHS AFTER ROYAL ASSENT

Chapter	Short title	Extent of repeal
1922 c. 35.	Celluloid and Cinematograph Film Act 1922.	In section 1, subsection (1)(a), and in subsection (2) the words from “the provisions” (where first occurring) to “this Act, and”. Section 4(3).
1933 c. 12.	Children and Young Persons Act 1933.	Section 19.
1937 c. 37.	Children and Young Persons (Scotland) Act 1937.	Section 29.

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Chapter	Short title	Extent of repeal
1938 c. 69.	Young Persons (Employment) Act 1938.	The whole Act.
1950 c. 28.	Shops Act 1950.	Section 18. Section 20. Section 21(4). Sections 24 to 36. Section 68. In section 71(3), the words from "subsection (2) of section one hundred and forty-two" to "given age)." Section 72. In section 74, in subsection (1) the definition of "young person", and subsection (2). Part II of Schedule 3.
1954 c. 70.	Mines and Quarries Act 1954.	In sections 42(1), 43 and 44, the word "male", wherever occurring. In section 93, the words "woman or young", in both places where they occur. Section 124(2). Sections 125 to 132. In Schedule 4, the entry relating to the Young Persons (Employment) Act 1938.
1961 c. 34.	Factories Act 1961.	Section 11(1)(a)(iii). In section 20, the words "woman or", in both places where they occur. Section 73(1). Sections 86 to 94. Sections 96 to 109. Sections 112 to 116. Section 117(1)(a). Section 121(1)(f) (except the final "and") and (5). Section 126(2)(f). Section 138(1)(d). Section 140(1)(d). In section 176(4), the words from "except that" onwards.
1963 c. 37.	Children and Young Persons Act 1963.	Section 35(1).
1963 c. 41.	Offices, Shops and Railway Premises Act 1963.	In section 17, subsection (3), in subsection (4) the words from "except when any" onwards, and subsection (5).
1964 c. 66.	Young Persons (Employment) Act 1964.	The whole Act.

Chapter	Short title	Extent of repeal
1968 c. 14.	Public Expenditure and Receipts Act 1968.	In Schedule 3, the entry relating to the Young Persons (Employment) Act 1938.
1971 c. 80.	Banking and Financial Dealings Act 1971.	Section 4(2). In section 5(2), the words “, except section 4(2),”.
1972 c. 70.	Local Government Act 1972.	In Schedule 29, paragraph 46.
1973 c. 24.	Employment of Children Act 1973.	Section 1(5). In Schedule 2, the first two entries.
1973 c. 65.	Local Government (Scotland) Act 1973.	Section 155(4). Section 160.
1975 c. 65.	Sex Discrimination Act 1975.	In section 7, subsection (2)(f), and in subsection (4) “, (f)”. In section 81, in subsections (1) and (2), “14(2)(d),”.
1976 c. 74.	Race Relations Act 1976.	In section 74, in subsection (2), “13(2)(d), 37(3)(b),” and, in subsection (5), “13(2)(d), 37(3)(b) or”.
1978 c. 44.	Employment Protection (Consolidation) Act 1978.	Sections 104 and 104A. Section 106(4). Section 117(2A) and (2B). In section 153(1), the definition of “redundancy rebate”. Schedule 6. In Schedule 8, the entry relating to section 104 of the Act, and in the entry relating to section 108 of the Act “, (2), (4) and (5)”. In Schedule 15, paragraph 13.
1980 c. 43.	Magistrates’ Courts Act 1980.	In Schedule 7, paragraph 174.
1982 c. 46.	Employment Act 1982.	In Schedule 2, paragraph 6(3). In Schedule 3, paragraph 5.
1985 c. 65.	Insolvency Act 1985.	In Schedule 8, paragraph 31(4).
1985 c. 66.	Bankruptcy (Scotland) Act 1985.	In Schedule 7, paragraph 14(3).
1986 c. 45.	Insolvency Act 1986.	In Schedule 14, the entry relating to section 125(2) of the Employment Protection (Consolidation) Act 1978.
1986 c. 48.	Wages Act 1986.	Section 27. In Schedule 4, paragraphs 8 and 11. In Schedule 6, paragraph 9.

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Chapter	Short title	Extent of repeal
1986 c. 59.	Sex Discrimination Act 1986.	In section 5(1), the words from “, apart from” to “authority),”. Section 7. In section 10, in subsection (3) “, 7”, and in subsection (5), the words from “except for the purpose” onwards.
1986 c. 61.	Education (No.2) Act 1986.	In Schedule 4, paragraph 6.
1988 c. 19.	Employment Act 1988.	In Schedule 3, in Part II, paragraphs 11(1) and 12(1) and (3).

PART III

REPEALS COMING INTO FORCE ON A DAY APPOINTED UNDER S. 30(4)

Chapter	Short title	Extent of repeal
1920 c. 65.	Employment of Women, Young Persons, and Children Act 1920.	Section 1(3). In section 3(1), the words “young persons, or”. Part II of the Schedule.
1954 c. 70.	Mines and Quarries Act 1954.	Section 124(1).
1961 c. 34.	Factories Act 1961.	In section 117(1), the words “or transport”, the words from “any of the following” to “that is to say”, and paragraph (b) and the “(c)” immediately following it. Section 119A.
1972 c. 28.	Employment Medical Advisory Service Act 1972.	Section 5(1). Section 8(1) so far as relating to section 119A of the Factories Act 1961.
1973 c. 50.	Employment and Training Act 1973.	In Schedule 3, paragraph 6.
1975 c. 65.	Sex Discrimination Act 1975.	Section 21(1).
1980 c. 42.	Employment Act 1980.	In Schedule 1, paragraph 9.

SCHEDULE 8

Section 29(5).

INSTRUMENTS REVOKED

Number	Title	Extent of revocation
S.R.&O. 1905/1103.	Regulations dated 17th October 1905 (Spinning by self-acting mules).	In Regulation 4(b), the words "woman, young person, or".
S.R.&O. 1917/1035.	Order dated 5th October 1917 (Tin or terne plate factories).	Article 2.
S.R.&O. 1926/1463.	Woollen and Worsted Textiles (Lifting of Heavy Weights) Regulations 1926.	The whole Regulations.
S.R.&O. 1930/94.	Cement Works Welfare Order 1930.	Article 1(d).
S.I. 1948/1696.	Jute (Safety, Health and Welfare) Regulations 1948.	Regulation 4.
S.I. 1950/65.	Pottery (Health and Welfare) Special Regulations 1950.	In Regulation 6, paragraphs (1)(x), (2), (5) and (6). In Regulation 12(4), the words from "; and where" onwards. Regulation 18(7).
S.I. 1973/37.	Abstract of Special Regulations (Pottery - Health and Welfare) Order 1973.	Schedule 1 so far as it reproduces Regulations 6(2) and 18(7) of the Pottery (Health and Welfare) Special Regulations 1950. Schedule 2 so far as it reproduces Regulations 6(1)(x), 6(2), 6(5), 6(6) and 18(7) of those Regulations of 1950.

SCHEDULE 9

Section 29(6).

TRANSITIONAL PROVISIONS AND SAVINGS

Sex discrimination

1. Nothing in section 3 of this Act shall render unlawful any act done by any person if—

- (a) it was done before the commencement of that section, or
- (b) it was done before the commencement of section 9(3) of this Act and it was necessary for him to do it in order to comply with section 124(1) of the Mines and Quarries Act 1954.

1954 c. 70.

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Time off for trade union duties

2. Section 14 of this Act shall not affect the continued operation of section 27 of the 1978 Act in a case where—

- (a) permission to take time off under section 27 of that Act was requested before the commencement of section 14 of this Act; and
- (b) the time off in question was to begin not later than the end of the period of six weeks beginning with that commencement.

Redundancy payments: assimilation of age limits

3.—(1) The amendments made by section 16 of this Act shall not have effect in relation to an employee in whose case the relevant date (as defined in sub-paragraph (2)) falls before the commencement of that section.

(2) In sub-paragraph (1) “the relevant date” means the date which for the purposes of section 81(4) of the 1978 Act is the relevant date in the case of the employee by virtue of any provision of section 90 of that Act.

Redundancy rebates

4.—(1) Nothing in this Act shall affect the continued operation of any provision of the 1978 Act for the purposes of, or in connection with, the payment of a redundancy rebate under section 104 of that Act in a case where—

- (a) a claim for the rebate has been made in accordance with regulations under section 104(5) before the commencement of section 17 of this Act, or
- (b) notwithstanding that such a claim has not been so made, the rebate is in respect of any payment falling within section 104(1)(a) or (b) in relation to which the relevant date (as defined in sub-paragraph (2)) falls before the commencement of section 17.

(2) In sub-paragraph (1)(b) “the relevant date”—

- (a) in the case of a payment falling within section 104(1)(a), means the date which for the purposes of section 81(4) of the 1978 Act is the relevant date in relation to that payment by virtue of any provision of section 90 of that Act, and
- (b) in the case of a payment falling within section 104(1)(b), means the date on which the termination of the employee’s contract of employment is treated as having taken effect for the purposes of the agreement referred to in that provision.

Insolvency payments

5. The amendments made by section 19 of this Act shall not have effect in relation to any payment made in pursuance of section 122 or 123 of the 1978 Act in a case where the employer became insolvent before the commencement of section 19 of this Act.

Appointments to industrial training boards

1982 c. 10.

6.—(1) The amendments by this Act of paragraphs 3 and 6 of Schedule 1 to the Industrial Training Act 1982 shall not apply to an industrial training board during any period during which any member of the board appointed before the passing of this Act remains in office by virtue of that appointment.

(2) Sub-paragraph (1) above shall not be taken as precluding the Secretary of State during any such period from making appointments to the board in accordance with that Schedule as amended by this Act where they are to take effect at any time after the end of that period.
